

The Motion for Attorney's Fees and Costs is GRANTED in part. Plaintiff should be awarded \$17,900 for attorney's fees and \$605.76 in litigation costs. The request for multiplier is DENIED.

Plaintiff/Moving party to submit an order to the court consistent with this court's ruling.

2.

CASE #	CASE NAME	HEARING NAME
CVME2500875	LVNV FUNDING LLC VS GARCIA GARCIA	MOTION TO AMEND JUDGMENT

Tentative Ruling: Motion unopposed. Motion GRANTED. Judgment will be amended to reflect the correct amount. Court to sign the proposed amended order and judgment.

3.

CASE #	CASE NAME	HEARING NAME
CVME2504447	CAPITAL ONE, N.A. VS CREACY	MOTION TO VACATE DISMISSAL

Tentative Ruling: Motion unopposed. Motion GRANTED.

IT IS ORDERED that the dismissal as to ALVIRA CREACY entered on August 29, 2025 be set aside and vacated, and judgment entered in favor of Plaintiff CAPITAL ONE, N.A., and against Defendant ALVIRA CREACY, in the principal sum of \$7,267.00, and court costs in the sum of \$923.61 for a total judgment of \$8,190.61. Court to sign the proposed order and proposed judgment.

4.

CASE #	CASE NAME	HEARING NAME
CVME2509646	WELLS FARGO BANK, N.A. VS MERRIAM	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Moving party: Plaintiff Wells Fargo Bank, N.A.
Non-Opposing party: Defendant Jean Marie Merriam
Motion filed: 3/10/26

On 7/16/25, Plaintiff Wells Fargo Bank, N.A. filed this collections action for (1) breach of contract and (2) breach of contract against Defendant Jean Marie Merriam for an unpaid credit card balance of \$19,215.26. On 10/3/25, Defendant filed an answer containing a general denial and 11 affirmative defenses. Trial is set for 8/6/26.

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) When a plaintiff is the moving party, the plaintiff has the burden to produce admissible evidence on each element of a cause of action entitling him to judgment. (Civ. Proc. Code, § 437c(p)(1).) The plaintiff does not have the burden to disprove affirmative defenses. (*Id.*) At that point, the burden shifts to the defendant to show that a triable issue exists. (*Id.*)

The elements for a breach of contract claim are: (1) a contract; (2) plaintiff's performance or excuse for nonperformance; (3) breach; and (4) damages. (*Wall Street Network, Ltd. v. N. Y. Times Co.* (2008) 164 Cal.App.4th 1171, 1178.)

Here, Plaintiff meets its initial burden. Defendant applied for and was issued a Wells Fargo credit card. (UF no. 1.) Defendant used the credit card. (UF no. 6.) Plaintiff sent monthly billing statements. (UF no. 7.) Defendant's last payment was 1/19/24 with no other payments. (UF no. 11-12.) There remains an unpaid balance of \$19,215.26. (UF no. 13-14.) Defendant failed to oppose the motion. The is GRANTED. Court to sign the proposed order and the proposed judgment.

5.

CASE #	CASE NAME	HEARING NAME
CVME2600103	GRAVITAS GOLDENS LLC VS LADEVEZE	MOTION TO COMPEL TURNOVER OF PROPERTY

Tentative Ruling: The court signed the turnover order on May 14, 2026. However, there is a motion to vacate court dates including this June 18, 2026 court date. There may be an appellate ruling that has remanded this case back to superior court. Therefore, this hearing is off calendar.